

Dr.Suryakanta Sahu vs Dr.Suman Kar Opposite Party on 17 October, 2022

Author: Savitri Ratho

Bench: Savitri Ratho

IN THE HIGH COURT OF ORISSA AT CUTTACK
TRP (C) No.206 of 2016

Dr.Suryakanta Sahu		Petitioner
	Mr.Abhishek Pradhan, Advocate	
	on behalf of Mr. D.P.Dhal, Advocate	
	Versus	
Dr.Suman Kar		Opposite Party

CORAM:
JUSTICE SAVITRI RATHO

ORDER

Order No. 17.10.2022

05. (Through hybrid mode)

1. This application has been filed by the petitioner-wife under Section 24 of C.P.C. for transfer of C.P. No.152 of 2016 filed by the opposite party under Section 9 of the Hindu Marriage Act read with Rule 5 of the Family Courts (Court) Rules, 2010 for restitution of conjugal rights in the Court of learned Judge, Family Court, Balasore, to the Court of learned Judge, Family Court, Cuttack.

2. Notice had been issued to the opposite party in this case by order dated 16.2.2017 and as an interim measure, further proceedings in C.P.No.152 of 2016, pending in the Court of learned Judge, Family Court, Balasore had been directed to be stayed. Thereafter, the matter has been listed today and almost 6 years have elapsed in the meanwhile.

3. Mr.Pradhan, learned counsel prays for some time to obtain instruction regarding the present status of C.P.No.152 of 2016.

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4. List this matter on 31.10.2022 in order to enable him to obtain instructions regarding present status of the aforesaid C.P.Case.

5. The Registry is also directed to call for a report regarding the present status of C.P.No.152 of 2016 from the learned Judge, Family Court, Balasore.

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(Savitri Ratho) Judge Bichi